

COMMITTEE ON NATURAL RESOURCES
SENATE AMENDMENTS TO H.B. 2014
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Department of environmental quality; air emissions
3 modeling; coordination; report; delayed repeal

4 A. Within [ninety] [two hundred ten] days after the effective date
5 of this act, the director of the department of environmental quality, in
6 consultation with the associate director of the weights and measures
7 services division of the Arizona department of agriculture, for each
8 seasonal time period in area A as defined in section 49-541, Arizona
9 Revised Statutes, and area C as defined in section 3-3401, Arizona Revised
10 Statutes, shall evaluate, using the most recent air emissions model
11 approved by the United States environmental protection agency, each of the
12 following gasoline blends for compliance:

13 1. Federal phase II reformulated gasoline, as provided in 40 Code
14 of Federal Regulations sections 1090.200 through 1090.295, in effect on
15 January 1, 2021, as modified to meet, for each relevant time period, the
16 maximum vapor pressure requirements in section 3-3433, subsections D and
17 F, Arizona Revised Statutes, and the minimum oxygen content or percentage
18 by volume of ethanol requirements prescribed in section 3-3492, Arizona
19 Revised Statutes.

20 2. California phase 3 reformulated gasoline, as adopted by the
21 California air resources board pursuant to California Code of Regulations
22 title 13, sections 2261 through 2262.7 and 2265, in effect on February 16,
23 2014, as modified to meet, for each relevant time period, the minimum
24 oxygen content or percentage by volume of ethanol requirements prescribed
25 in section 3-3492, Arizona Revised Statutes.

26 3. Federal conventional gasoline, as modified to meet, for each
27 relevant time period, the maximum vapor pressure requirements in section
28 3-3433, subsections D and F, Arizona Revised Statutes, and the minimum

1 oxygen content or percentage by volume of ethanol requirements prescribed
2 in section 3-3492, Arizona Revised Statutes.

3 4. Conventional gasoline or gasoline that otherwise meets the
4 standards for ASTM D4814 and the maximum vapor pressure requirements in
5 section 3-3433, subsection D, Arizona Revised Statutes.

6 5. On the effective date of this act, all gasoline or gasoline
7 blends that are approved for sale or use in petroleum administration of
8 defense district five and that have not been approved for sale or use in
9 area A as defined in section 49-541, Arizona Revised Statutes, and area C
10 as defined in section 3-3401, Arizona Revised Statutes, during any
11 seasonal period and that have not been evaluated by the director of the
12 department of environmental quality using the most recent air emissions
13 model approved by the United States environmental protection agency.

14 B. Within ninety days after completing the air emissions modeling
15 required pursuant to subsection A of this section, the director of the
16 department of environmental quality shall prepare and publish on the
17 department's website a report containing the findings of the air emissions
18 modeling completed pursuant to subsection A of this section and
19 identifying each gasoline or gasoline blend that may be eligible for
20 approval by the United States environmental protection agency to be sold
21 or used in one or more regulated areas during one or more seasonal time
22 periods. The director of the department of environmental quality shall
23 submit a copy of the report to the associate director of the weights and
24 measures services division of the Arizona department of agriculture, the
25 governor, the president of the senate and speaker of the house of
26 representatives and shall provide a copy of the report to the secretary of
27 state.

28 C. This section is repealed from and after September 30, 2027.

29 Sec. 2. Weights and measures services division; feasibility
30 study; coordination; report; delayed repeal

31 A. Within ninety days after the associate director's receipt of the
32 report required by section 1, subsection B of this act, the associate
33 director of the weights and measures services division of the Arizona
34 department of agriculture, in consultation with registered suppliers and
35 oxygenate blenders, shall conduct a study to evaluate the feasibility of
36 authorizing or obtaining for sale or use in this state each gasoline or
37 gasoline blend identified in the report that meets the following criteria:

38 1. The gasoline or gasoline blend may be eligible for approval by
39 the United States environmental protection agency to be sold or used in
40 one or more regulated areas during one or more seasonal time periods.

41 2. The gasoline or gasoline blend is not currently authorized for
42 sale or use in area A as defined in section 49-541, Arizona Revised
43 Statutes, and area C as defined in section 3-3401, Arizona Revised
44 Statutes, during any seasonal time period.

1 B. Within ninety days after completing the feasibility study
2 required by subsection A of this section, the associate director of the
3 weights and measures services division of the Arizona department of
4 agriculture shall prepare and publish on the division's website a report
5 containing the following:

6 1. The findings of the feasibility study.

7 2. The impact of a potential gasoline's or gasoline blend's sale or
8 authorization on this state's transportation fuel supply.

9 3. The availability of transportation or supply capacity to provide
10 a potential gasoline or gasoline blend.

11 C. The associate director of the weights and measures services
12 division of the Arizona department of agriculture shall submit a copy of
13 the report to the governor, the president of the senate and speaker of the
14 house of representatives and shall provide a copy of the report to the
15 secretary of state.

16 D. Information the associate director of the weights and measures
17 services division of the Arizona department of agriculture receives from a
18 registered supplier or oxygenate blender pursuant to subsection A of this
19 section shall be treated as sensitive information and kept confidential.
20 In the report prepared pursuant to subsection B of this section, the
21 associate director may not name, identify or provide any identifiable
22 information of a registered supplier or oxygenate blender without the
23 written consent of the registered supplier or oxygenate blender.

24 E. This section is repealed from and after September 30, 2027.

25 Sec. 3. Appropriation; department of environmental quality;
26 air emissions modeling

27 The sum of \$100,000 is appropriated from the state general fund in
28 fiscal year 2026-2027 to the department of environmental quality for air
29 emission modeling.

30 Sec. 4. Appropriation; Arizona department of agriculture;
31 fuel blend feasibility study

32 The sum of \$100,000 is appropriated from the state general fund in
33 fiscal year 2026-2027 to the Arizona department of agriculture for a fuel
34 blend feasibility study.

35 Enroll and engross to conform

36 Amend title to conform

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